



STUDY GUIDE • IEUMUN 2026

UNSC

United Nations Security Council

The Question of International Security in Maritime Chokepoints

WRITTEN BY

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01

Welcome Letter from the Chairs

A LETTER FROM

Mahima Rajpal, Talia Asar, and Aryan Agrawal

Chairs of the United Nations Security Council IEUMUN 2026

Dear Distinguished Delegates,

Welcome to the United Nations Security Council at IEUMUN 2026. We are Mahima Rajpal, Talia Asar and Aryan Agrawal, and we are delighted to welcome you to one of the conference's most dynamic and intellectually demanding committees. First, we would like to introduce ourselves.

I'm Mahima Rajpal, an Electrical Engineering and IT Major at the Karlsruhe Institute of Technology (KIT), Germany. Although my academic background is rooted in engineering, I have always been fascinated by international affairs and the role diplomacy plays in addressing complex global challenges. MUNs have become the perfect intersection of these interests, combining analytical thinking with negotiation, leadership, and public speaking. Having participated in and led conferences across the European MUN circuit in various roles, I am excited to chair this year's Security Council alongside my co-chairs. What I enjoy most about the Security Council is its ability to bring together legal, political, economic, and strategic perspectives to address some of the world's most pressing challenges. Maritime security embodies exactly that complexity, and I hope this committee encourages you to think beyond immediate crises and develop practical, balanced, and lasting solutions.

My name is Ashanti Talia Asar and I have just graduated with my bachelors in Business Administration from Hult International Business school. I first started MUN in high school and enjoyed it so much that I stuck to it. Since then I have had the privilege of joining HultMUN first as a delegate, then leading for a year as a president and now being a proud HultMUN alumni. I have always loved security related and financial committees. Last year I chaired the WTO at IEUMUN and this year I have the pleasure of chairing UNSC. I am very excited to see what all of you will bring to the debate and what solutions you will bring to the table. I hope this committee pushes you to think outside the box in ways that encourages interdisciplinary thinking.

I am Aryan Agrawal, a second-year student pursuing a Dual Degree in Economics and International Relations at IE University in Spain. My journey with debate and Model United Nations began at the age of nine, and since 2018, I have had the privilege of actively delegating, chairing internationally, and organising conferences across different platforms. Over the years, I have come to deeply value MUN for the way it creates a space where people can open up, exchange ideas, and engage meaningfully with one another. For me, MUN is not just about procedure or debate, but about the unique blend of diplomacy, critical thinking, collaboration, and leadership that it fosters. These are qualities that continue to inspire me and shape the way I approach every committee I am part of. I am truly honoured to serve as a chair at IEUMUN 2026, and I look forward to working with all delegates in a dynamic, engaging, and productive committee.

This Study Guide provides the foundation for your preparation, but it should not replace independent research. We encourage you to examine your country's strategic interests, trade and energy dependencies, interpretation of international maritime law, relationships with regional actors, and position on naval or multilateral security mechanisms.

A clear and well-researched Position Paper will help you enter a committee with realistic priorities, defensible red lines, and workable proposals. The strongest delegates will not merely describe the problem; they will understand what their state can support, what it will resist, and where compromise remains possible.

We are excited to welcome you to IEUMUN 2026. Come prepared to question assumptions, defend your mandate, negotiate strategically, and confront one of the most consequential security challenges currently being faced by the world.

Warm regards,

Mahima Rajpal, Talia Asar, and Aryan Agrawal

02

List of Abbreviations

AIS	Automatic Identification System
ASEAN	Association of Southeast Asian Nations
EEZ	Exclusive Economic Zone
FON	Freedom of Navigation
FONOPs	Freedom of Navigation Operations
GCC	Gulf Cooperation Council
IMSC	International Maritime Security Construct
nm	Nautical Mile(s)
UNCLOS	United Nations Convention on the Law of the Sea

03

About the Committee

Mandate

The Charter of the Security Council mandates it as the principal organ of the United Nations (UN) responsible for the maintenance of international peace and security.¹ Article 24 of the UN Charter dictates that all UN Member States “agree to accept and carry out the decisions of the Security Council in accordance with the present Charter”. This means the Security Council is the only UN body which has the power to make legally binding decisions for all member states.² Its responsibilities range from determining threats to international peace and security and recommending methods of peaceful resolution, to sanctioning and authorising the use of military force.³

Topics

The UNSC deals with a broad range of issues, all connected to the core mandate of maintaining international peace and security. This includes:

- **Threats to peace, breaches of the peace, and acts of aggression** – Article 39 of the Charter allows the UNSC to address interstate wars, civil conflicts, and other politically destabilising situations.⁴
- **Interstate and intrastate conflicts** – Development of the UN peacekeeping force, which deals with situations such as non-state armed groups involved in conflict and violent extremism.⁵

¹ (United Nations, 1945, Art. 24)

² (United Nations, 1945, Art. 24-25)

³ (United Nations, 1945, VI-VII)

⁴ United Nations. (1945). Charter of the United Nations, Chapter VII, Article 39. <https://www.un.org/en/about-us/un-charter/chapter-7>

⁵ United Nations. (n.d.). Peace and security. <https://www.un.org/en/global-issues/peace-and-security>

- **Sanctions and economic measures** – Includes various methods to pressure parties to comply with UNSC demands, without resorting to military force.⁶ Methods include trade embargoes, arms embargoes, travel bans, freezing assets, and severance of diplomatic relations.⁷
- **Peacekeeping and stabilisation** – Operations which aim to facilitate political processes (such as elections or constitutional processes), promoting human rights, restoring the rule of law, and extending legitimate state authority.⁸
- **Terrorism** – Coordinating global responses to fight against terrorism. The UNSC has also created subsidiary bodies dedicated to this cause (eg. counter-terrorism committees).⁹
- **Protection of civilians and prevention of atrocities** – Responding to early warnings of genocide, war crimes, ethnic cleansing, and crimes against humanity. UNSC's mandate is to protect civilian operations and is authorised to coordinate collective action if the national authorities are not able / do not.¹⁰
- **Disarmament and arms regulations** – Article 26 of the UN Charter allows for planning and creating regulation of armaments.¹¹
- **Dispute settlement and mediation** – Engaging in preventative diplomacy, through mediation, investigations, appointing representatives, and requesting help from valuable stakeholders, before using enforcement measures.¹²

Composition

The UNSC is composed of 15 members. There are two separate categories: five permanent members and ten non-permanent rotating members. Each member has one vote. The permanent members are China, France, the Russian Federation, the United Kingdom, and the United States. The non-permanent rotating members are elected by the UN

6 United Nations. (1945). Charter of the United Nations, Chapter VII, Article 41. <https://www.un.org/en/about-us/un-charter/chapter-7>

7 United Nations. (n.d.). Peace and security. <https://www.un.org/en/global-issues/peace-and-security>

8 United Nations. (n.d.). Maintain international peace and security. <https://www.un.org/en/our-work/maintain-international-peace-and-security>

9 United Nations. (n.d.). Maintain international peace and security. <https://www.un.org/en/our-work/maintain-international-peace-and-security>

10 United Nations. (n.d.). Security Council: Responsibility to protect. <https://www.un.org/en/genocide-prevention/responsibility-protect/security-council>

11 United Nations. (1945). Charter of the United Nations, Chapter V, Article 26. <https://www.un.org/en/about-us/un-charter/chapter-5>

12 United Nations. (n.d.). Peace and security. <https://www.un.org/en/global-issues/peace-and-security>

General Assembly for two-year terms.¹³ Article 27 of the UN Charter requires 9 of 15 members to vote for procedural matters. Substantive matters require nine affirmative votes, but all the permanent members must vote in the affirmative, as they possess veto power.¹⁴ If any of the permanent members vote against, the substantive matter has been unilaterally stopped.¹⁵ Much academic scholarship has been conducted on this history of the veto power and how it has affected decision making within the Security Council.

Operating Procedure

The Security Council functions continuously, as intended in Article 28(1) of the UN Charter.¹⁶ Each member of the Council must be represented at all times, most often the UN headquarters in New York City. The Council also rotates the position of UNSC President, each month. The President is determined by an English alphabetical order of their country names (for both permanent and non-permanent members).¹⁷ The President must call at least one meeting, but any Council member can request a meeting. The President must call a meeting when a dispute has been brought to the Council's attention, for example, a situation regarding disturbance of international peace or security. The President is also obliged to call a meeting if the UN Secretary-General brings a matter to the Council's Attention. An additional rule, allows for more formal semi-annual meetings periodically.¹⁸ The Security Council meets much more than the minimum threshold. In 2025, the Security Council had 255 formal meetings and 115 informal consultations.¹⁹

The UN Secretary-General draws up a provisional agenda for each Security Council meeting, and the President must approve it. Then the provisional agenda must be communicated to Council members before the meeting. Any unfinished agenda item

¹³ United Nations. (1945). Charter of the United Nations, Chapter V, Article 23. <https://www.un.org/en/about-us/un-charter/chapter-5>

¹⁴ United Nations. (n.d.). Main bodies. <https://www.un.org/en/about-us/main-bodies>

¹⁵ United Nations. (1945). Charter of the United Nations, Chapter V, Article 27. <https://www.un.org/en/about-us/un-charter/chapter-5>

¹⁶ United Nations. (1945). Charter of the United Nations, Chapter V, Article 28. <https://www.un.org/en/about-us/un-charter/chapter-5>

¹⁷ United Nations Security Council. (n.d.). Provisional rules of procedure (S/96/Rev.7), Rule 18. <https://main.un.org/securitycouncil/en/content/rop/chapter-4>

¹⁸ United Nations Security Council. (n.d.). Provisional rules of procedure (S/96/Rev.7), Rules 1–3. <https://main.un.org/securitycouncil/en/content/rop/chapter-1>

¹⁹ United Nations Security Council. (2025). Highlights 2025. <https://main.un.org/securitycouncil/en/content/highlights-2025>

from the last meeting, automatically carries over to the next meeting, unless the Council decides otherwise.²⁰

The Security Council has many types of meetings available to it. Including formal meetings, which are the default type, and are normally public, either through transcript, meeting notes, or livestreaming.²¹ Private meetings are closed to the public.²² Informal consultations, also called consultations of the whole, bring all Council members into a private room with an agreed agenda, but without outside observers.²³ ²⁴ Informal meetings are much more flexible and have been developed to depend more on the situation at the time.

Non-Council members may participate in the meeting if the Council members decide that their interests are “specially affected” by the agenda of the meeting.²⁵ They do not have voting power on procedural or substantive matters. Any State, regardless of UN membership, which is a party to a dispute being reviewed by the Council must be invited to participate. They also do not have voting power.²⁶

When the Security Council receives a complaint about a threat to peace, it first recommends that the parties seek an agreement via peaceful means.²⁷ However, the Council has the power to investigate the issue, mediate between the parties, or use other diplomatic means to resolve the issue.²⁸

²⁰ United Nations Security Council. (n.d.). Provisional rules of procedure (S/96/Rev.7), Rules 6–10. <https://main.un.org/securitycouncil/en/content/rop/chapter-2>

²¹ United Nations Security Council. (n.d.). Repertoire of the Practice of the Security Council, Part II: Meetings and Records. https://main.un.org/securitycouncil/sites/default/files/2025/26th%20Supplement_part%20II.pdf

²² United Nations Security Council. (n.d.). Repertoire of the Practice of the Security Council, Part II: Meetings and Records. https://main.un.org/securitycouncil/sites/default/files/2025/26th%20Supplement_part%20II.pdf

²³ United Nations Security Council. (2025). Highlights 2025. <https://main.un.org/securitycouncil/en/content/highlights-2025>

²⁴ United Nations Security Council. (n.d.). Procedural issues. <https://main.un.org/securitycouncil/en/content/repertoire/procedural-issues>

²⁵ United Nations. (1945). Charter of the United Nations, Chapter V, Article 31. <https://www.un.org/en/about-us/un-charter/chapter-5>

²⁶ United Nations. (1945). Charter of the United Nations, Chapter V, Article 32. <https://www.un.org/en/about-us/un-charter/chapter-5>

²⁷ United Nations. (n.d.). Maintain international peace and security. <https://www.un.org/en/our-work/maintain-international-peace-and-security>

²⁸ United Nations. (n.d.). Peace and security. <https://www.un.org/en/global-issues/peace-and-security>

Enforcement Powers

The Security Council's most influential power comes from enforcement. Chapter VII of the UN Charter governs the "Action with Respect to Threats to the Peace, Breaches of the Peace, and Acts of Aggression."²⁹ These include:

- **Article 39** – the Council may determine when a situation is a threat to the peace, a breach of the peace, or an act of aggression; and to decide on measures to maintain or restore international peace and security³⁰
- **Article 40** – the Council can call on parties to comply with measures to prevent situations from worsening³¹
- **Article 41** – the Council can impose measures (without the use of armed force)^{32 33}
- **Article 42** – the Council may (as a measure of last resort) take action by air, sea, or land forces if it is necessary to maintain or restore international peace and security³⁴

Self-Defense

Article 51 of the UN Charter allows UN Member States the right of individual or collective self-defense.³⁵ The requirement is that an armed attack has been taken against them, and they may only act after the Security Council has taken enforcement measures. All acts of self-defense must be reported to the Council, and must not affect the Council's authority or responsibility to act.³⁶

²⁹ United Nations. (1945). Charter of the United Nations, Chapter VII. <https://www.un.org/en/about-us/un-charter/c-hapter-7>

³⁰ United Nations. (1945). Charter of the United Nations, Chapter VII, Article 39. <https://www.un.org/en/about-us/un-charter/chapter-7>

³¹ United Nations. (1945). Charter of the United Nations, Chapter VII, Article 40. <https://www.un.org/en/about-us/un-charter/chapter-7>

³² United Nations. (1945). Charter of the United Nations, Chapter VII, Article 41. <https://www.un.org/en/about-us/un-charter/chapter-7>

³³ United Nations. (n.d.). Uphold international law. <https://www.un.org/en/our-work/uphold-international-law>

³⁴ United Nations. (1945). Charter of the United Nations, Chapter VII, Article 42. <https://www.un.org/en/about-us/un-charter/chapter-7>

³⁵ United Nations. (1945). Charter of the United Nations, Chapter VII, Article 51. <https://www.un.org/en/about-us/un-charter/chapter-7>

³⁶ United Nations. (n.d.). Uphold international law. <https://www.un.org/en/our-work/uphold-international-law>

Peacekeeping Operations

UN Peacekeeping operations follow mandates from the Security Council.³⁷ Peacekeeping operations are formed of troops and police, which are contributed by the Member States and are managed by the Department of Peace Operations.³⁸ More recently, peacekeeping has become multidimensional and goes beyond the original mandate of monitoring compliance with ceasefires. The peacekeeping forces may be called to help facilitate political processes, protect civilians, support disarmament, demobilisation, and reintegrating former combatants.³⁹

Subsidiary Organs

Article 29 of the UN Charter allows the Security Council to establish subsidiary organs if it deems it necessary to perform its functions.⁴⁰ This has included the creation of:

- **Counter-Terrorism and Non-Proliferation committees** – monitor implementation of counter-terrorism measures and measures to prevent non-states actors from acquiring nuclear, chemical, or biological weapons⁴¹⁴²
- **Sanction Committees** – operate regionally to monitor the effect and compliance with economic sanctions^{43 444546}

³⁷ United Nations. (n.d.). Maintain international peace and security. <https://www.un.org/en/our-work/maintain-international-peace-and-security>

³⁸ United Nations. (n.d.). Maintain international peace and security. <https://www.un.org/en/our-work/maintain-international-peace-and-security>

³⁹ United Nations. (n.d.). Maintain international peace and security. <https://www.un.org/en/our-work/maintain-international-peace-and-security>

⁴⁰ United Nations. (1945). Charter of the United Nations, Chapter V, Article 29. <https://www.un.org/en/about-us/un-charter/chapter-5>

⁴¹ United Nations Security Council. (n.d.). Counter-Terrorism Committee: Our mandate. <https://www.un.org/securitycouncil/ctc/content/our-mandate>

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⁴³ United Nations Security Council. (n.d.). Sanctions. <https://main.un.org/securitycouncil/en/sanctions/information>

⁴⁴ United Nations Security Council. (n.d.). Security Council subsidiary bodies: An overview. <https://main.un.org/securitycouncil/en/content/security-council-subsidiary-bodies-overview>

⁴⁵ United Nations Security Council. (n.d.). Counter-Terrorism Committee: FAQs. <https://www.un.org/securitycouncil/ctc/content/faqs>

⁴⁶ United Nations Security Council. (n.d.). 1540 Committee: Frequently asked questions. <https://www.un.org/en/sc/1540/faq.shtml>

- **Military Staff Committee** – advises and assists the Security Council on military requirements for its functions, regulation of armaments, and the employment and command of armed forces⁴⁷
- **Standing Committees and Ad Hoc Bodies** – addressing procedural matters (eg. applications for UN Membership)⁴⁸

Peacekeeping Operations and Special Political Missions

- **International Courts and Tribunals** – to complete the mandate of International Criminal Tribunals, and to adjudicate criminal charges against larger regimes⁴⁹
- **Peacebuilding Commission** – intergovernmental advisory body to support peace efforts in countries coming from conflict; advises both the Security Council and the UN General Assembly⁵⁰

⁴⁷ United Nations Security Council. (n.d.). Security Council subsidiary bodies: An overview. <https://main.un.org/securitycouncil/en/content/security-council-subsidary-bodies-overview>

⁴⁸ United Nations. (n.d.). Repertoire of the Practice of the Security Council, Supplement 2000–2003, Chapter V: Subsidiary Organs. https://www.un.org/french/docs/cs/repertoire/00-03/00-03_5.pdf

⁴⁹ United Nations Security Council. (n.d.). Security Council subsidiary bodies: An overview. <https://main.un.org/securitycouncil/en/content/security-council-subsidary-bodies-overview>

⁵⁰ United Nations. (n.d.). Peacebuilding. <https://www.un.org/peacebuilding/>

04

About the Topic

Key Terms

Term	Definition
Maritime Chokepoint	A narrow body of water that plays a strategic role as a funnel through which a large quantity of sea or ship traffic is compelled to flow. Such an area is, accordingly, susceptible to disruption and of great geopolitical significance.
Exclusive Economic Zone (EEZ)	A sea area determined by UNCLOS, 200 nm from the coast, in which the state has sovereignty over resources and economic activity.
Freedom of Navigation (FON)	It is the principle of freedom of passage in international waters and straits enjoyed by ships of any state without hindrance in international law.
UNCLOS	United Nations Convention on the Law of the Sea, 1982 the foundation document establishing rules concerning maritime rights and jurisdictions, including territorial sea and the EEZs.
Transit Passage	The right to innocent transit through an international strait without interference. It differs from the right of innocent passage through territorial waters and covers a broader range of actions.
Nine-Dash Line	The vast maritime claim by the Chinese in the South China Sea that the majority was invalidated by the permanent court of arbitration in 2016, that the claim has no basis in the UNCLOS.
Freedom of Navigation Operations (FONOPs)	US-backed military operations challenging the excessive territorial claims by the State.
Non-State Armed Actor	An actor which is not part of or affiliated with the state, and which is not armed.

Introduction to the Topic

Maritime choke points represent one of the most defining features of the modern global order. These strategic slivers of water, which can be either natural straits, man-made canals, or contested seaways, serve as conduits for massive share of the world's trade to pass through.⁵¹ The security of these chokepoints is a concern for many nations and organisations. It has become a matter of universal economic and security significance in the contemporary age.⁵² Over 80 per cent of the volume of international trade in goods is carried by sea. This number is even higher for developing countries.⁵³ 73 million barrels of oil are moved per day through major maritime chokepoints. This represents the vast majority of globally traded oil.⁵⁴ If oil cannot move through or past one of these chokepoints, it creates substantial supply delays which raises shipping costs and potentially increases world energy prices for every continent.⁵⁵

The five chokepoints the Council has been called upon to address today account for the flow of the vast majority of the globe's maritime trade and the bulk of energy exports that sustain the world economy.⁵⁶ They include: the South China Sea (and its straits), the Strait of Hormuz, the Bab el-Mandeb Strait, the Suez Canal, and the Panama Canal.

One factor that makes this challenge particularly complex for the Council is the multitude of threats involved, which some have roots in competing national sovereignty claims as between China and its neighbors in the South China Sea.⁵⁷ Other threats, as in Houthi missile attacks on maritime vessels passing through the Red Sea, are posed by non-state

⁵¹ British Institute for the Study of Iraq. (2024). Hidden in plain sight: The strategic significance and vulnerabilities of maritime chokepoints. <https://bisi.org.uk/reports/hidden-in-plain-sight-the-strategic-significance-and-vulnerabilities-of-maritime-chokepoints>

⁵² U.S. Energy Information Administration. (2025, June 16). Amid regional conflict, the Strait of Hormuz remains critical oil chokepoint. <https://www.eia.gov/todayinenergy/detail.php?id=65504>

⁵³ UNCTAD. (2025). Review of Maritime Transport 2025: Staying the course in turbulent waters. United Nations. <https://unctad.org/meeting/launch-review-maritime-transport-2025>

⁵⁴ Visual Capitalist. (2025). Mapped: The world's oil chokepoints. <https://www.visualcapitalist.com/mapped-the-worlds-oil-chokepoints/> (citing U.S. Energy Information Administration data)

⁵⁵ U.S. Energy Information Administration. (2025, June 16). Amid regional conflict, the Strait of Hormuz remains critical oil chokepoint. <https://www.eia.gov/todayinenergy/detail.php?id=65504>

⁵⁶ BCG. (2024). These four chokepoints are threatening global trade. <https://www.bcg.com/publications/2024/these-four-chokepoints-are-threatening-global-trade>

⁵⁷ Permanent Court of Arbitration. (2016). The South China Sea Arbitration (The Republic of Philippines v. The People's Republic of China), PCA Case No. 2013-19, Award of 12 July 2016. <https://docs.pca-cpa.org/2016/07/PH-C-N-20160712-Award.pdf>

actors.⁵⁸ And, yet others are based on the environment as the challenge of managing the low water levels of the Panama Canal or, in the operational example of the grounding of the container ship Ever Given in 2021 at the Suez Canal.⁵⁹ In each of these instances lies a deeper dilemma, involving state sovereignty versus freedom of navigation and, by extension, the dilemma of collective action versus great power competition.⁶⁰

The tension between state sovereignty and freedom of navigation is present in every chokepoint dispute.⁶¹ Coastal states adjacent to chokepoints attempt to assert their sovereign rights over the waters. Maritime powers insist on trade being unimpeded. The tension between maritime powers and sovereign rights continues to grow and to create more and more conflicts.⁶² States have differing interpretations of UNCLOS. This is seen particularly regarding the freedom of navigation operations in the South China Sea, which has implications beyond the region.⁶³

The Security Council's capacity to respond to chokepoint threats is constrained by the veto power of its permanent members, and how this tool has been wielded in history, along with the interconnectedness of the diplomatic parties involved in these conflicts. Economic stability relies on these chokepoints, but diplomacy is the answer to moving forward.

⁵⁸ United Nations Security Council. (2025, July 15). Adopting Resolution 2787 (2025), Security Council extends reporting mandate on Houthi attacks in the Red Sea [Press release]. <https://press.un.org/en/2025/sc16120.doc.htm>

⁵⁹ Chatham House. (2026). The maritime chokepoints that could be worse than Hormuz. The World Today. <https://www.chathamhouse.org/publications/the-world-today/2026-06/maritime-chokepoints-could-be-worse-hormuz>

⁶⁰ Security Council Report. (2025, April 30). Maritime security, May 2025 monthly forecast. <https://www.securitycouncilreport.org/monthly-forecast/2025-05/maritime-security-2.php>

⁶¹ United Nations. (n.d.). Applying the law of the sea to protect international shipping. UN Chronicle. <https://www.un.org/en/un-chronicle/applying-law-sea-protect-international-shipping>

⁶² United Nations. (n.d.). Applying the law of the sea to protect international shipping. UN Chronicle. <https://www.un.org/en/un-chronicle/applying-law-sea-protect-international-shipping>

⁶³ Security Council Report. (2025, April 30). Maritime security, May 2025 monthly forecast. <https://www.securitycouncilreport.org/monthly-forecast/2025-05/maritime-security-2.php>

05

Current Situation

Problem Statement

Maritime straits, geographically specific and narrow passages where the majority of the world's trade, energy, and navy transportation is funneled through, are an arena where there exists an overlap between two conflicting objectives: the need for unobstructed freedom of navigation common to all nations on a global scale, and the desire of particular states to exercise control over their national territories or strategic areas that serve their national interests.

The following five case studies in front of this panel, South China Sea, Strait of Hormuz, Bab el-Mandeb Strait, Panama Canal and Suez Canal, all show a unique feature of the same basic challenge:

- 1 Contestation over sovereignty and overlapping claims.** In the South China Sea, six parties contest their sovereign rights over the same area, and the 2016 verdict from the Permanent Court of Arbitration dismissing China's "Nine-Dash Line" claim has been refused by the defendant itself, showing that even if there is a legally binding decision, it does not force any party to accept it without an enforcement mechanism.^{64 65}
- 2 Military escalation driven by states.** Strait of Hormuz shows how an inter-state conflict involving two countries can shut off a chokepoint that carries about one-fifth of global oil and LNG commerce and how no Security Council mechanism exists to stop such action or roll it back quickly.⁶⁶

⁶⁴ Permanent Court of Arbitration. (2016, July 12). The South China Sea Arbitration (The Republic of the Philippines v. The People's Republic of China) (PCA Case No. 2013-19). <https://pca-cpa.org/en/cases/7/>

⁶⁵ Beech, H. (2021, July 12). China still rejects South China Sea ruling, 5 years on. VOA News. <https://www.voanews.com/>

⁶⁶ U.S. Energy Information Administration. (2025). The Strait of Hormuz is the world's most important oil transit chokepoint. <https://www.eia.gov/todayinenergy/>

- 3 Disruption by non-state actors.** Bab el-Mandeb shows that the threat to chokepoint security is not confined to states alone; the activities of the Houthi movement have forced a massive rerouting of ships from around the Cape of Good Hope, affecting the global economy in spite of the Houthi movement being a non-state actor.^{67 68}
- 4 Vulnerabilities of Environment and Infrastructure.** The Panama Canal serves as an example of a more recent form of chokepoint risk, where environmental conditions, namely drought-induced low water levels, can be as effective in limiting shipping capabilities as a military blockade would.⁶⁹
- 5 Risk Compounding and Cascading Effects.** An example of the effects of a chokepoint in one location causing further problems for another location is the case of the Suez Canal, and how an event such as the Ever Given grounding in 2021 shows the vulnerability of global shipping routes that cannot have alternatives to these chokepoints.⁷⁰

At the core of all five cases there lies a structural flaw: international law, namely the UNCLOS regime, sets the principles of transit passage and navigation freedom; however, it fails to provide an effective mechanism of enforcement of the above mentioned principles if some state or non-state actors decide to breach them.⁷¹ The Security Council has taken action selectively, mostly in relation to the Yemen conflict via resolutions (United Nations Security Council, 2024), but does not have a mechanism that would prevent, react to and defuse the crisis of chokepoints prior to causing global economic damage.

The effects of such vacuum in the system of international law cannot be limited to the regional scope, due to the small number of chokepoints carrying the bulk of global trade and energy flows, the disruption of any of these chokepoints due to military, non-military or environmental reasons may lead to an increase in shipping costs, destabilization of energy markets and economic instability in the countries which have no direct interest in the conflict. Therefore, the work of this committee should include consideration not

⁶⁷ United Nations Conference on Trade and Development. (2024). Review of maritime transport 2024. United Nations. <https://unctad.org/publication/review-maritime-transport-2024>

⁶⁸ United Nations Security Council. (2024, January 10). Resolution 2722 (2024) (S/RES/2722). [https://undocs.org/S/RES/2722\(2024\)](https://undocs.org/S/RES/2722(2024))

⁶⁹ U.S. Energy Information Administration. (2023, October 31). Drought at the Panama Canal delays energy shipments, increasing shipping costs. <https://www.eia.gov/todayinenergy/detail.php?id=60842>

⁷⁰ Suez Canal Authority. (2021). Investigation report on the grounding of the Ever Given in the Suez Canal on 23 March 2021. <https://www.suezcanal.gov.eg/>

⁷¹ United Nations. (1982). United Nations Convention on the Law of the Sea. United Nations Treaty Series, Vol. 1833, No. 31363. https://www.un.org/depts/los/convention_agreements/texts/unclos/unclos_e.pdf

only of the conflicts at each individual chokepoint but the overall lack of an effective international security regime.

Possible Solutions

Delegates should explore solutions at three different levels: **prevention** (to decrease the chance that disputes turn into disruptions), **reaction** (how to deal with the crisis when it happens), and **resilience** (how to decrease vulnerability of the global economy to any disruption in any of the chokepoints).

Prevention

- Improvement in the effectiveness of the UNCLOS rulings and international arbitration decisions, maybe by employing the Security Council's mechanisms to bring about punitive measures against those that do not comply with the decision like PCA in 2016.⁷²
- Restarting suspended diplomatic initiatives such as the long-awaited ASEAN-China Code of Conduct for the South China Sea in the UN framework.⁷³
- Implementing confidence-building measures for conflicting sides, including the establishment of hot lines, procedures for reporting, rules of engagement for coast guard ships and warships operating in the contested waters.
- Handling the root cause of disruptions by non-state actors, in particular, the war in Yemen which leads to attacks in the Red Sea by the Houthis, and recognizing that the problem of Bab el-Mandeb's safety goes beyond naval issues.⁷⁴

Response

- Expansion of existing multilateral naval cooperation structures such as the International Maritime Security Construct, Combined Maritime Forces, or EU-led convoying

⁷² Permanent Court of Arbitration. (2016, July 12). The South China Sea Arbitration (The Republic of the Philippines v. The People's Republic of China) (PCA Case No. 2013-19). <https://pca-cpa.org/en/cases/7/>

⁷³ Association of Southeast Asian Nations. (n.d.). ASEAN-China dialogue relations. <https://asean.org/asean-china-dialogue-relations/>

⁷⁴ United Nations Security Council. (2024, January 10). Resolution 2722 (2024) (S/RES/2722). [https://undocs.org/S/RES/2722\(2024\)](https://undocs.org/S/RES/2722(2024))

missions to defend commercial vessels against the use of force without involving any single country's unilaterally.⁷⁵

- Creation of some standing Security Council system or quick consultative procedure to deal specifically with chokepoints-related crises more effectively than the present case-by-case approach.
- Clarification of humanitarian and economic grounds for granting exemptions in case of closure or blockade of a strait in any future instances of that kind.

Resilience

- Promoting investments into other transportation infrastructure such as pipeline capacity circumventing the Strait of Hormuz, as well as extra port capacity that would make each single canal redundant.
- Climate change adaptation financing of infrastructure facilities including the Panama Canal as an example of the environment-related maritime security threat.⁷⁶
- Development of international insurance schemes that would allow stabilizing the shipping and energy market situation during temporary disruptions without an economic incentive to use the chokepoint access as a weapon.
- Higher standards in cybersecurity and infrastructure resilience of canal and strait operators given their increasing vulnerability to cyberattacks.

The delegates should take note of which of these solutions would be more appropriately handled via Security Council resolutions, which rely on voluntary multilateral cooperation outside the Council, and which need to address issues within bilateral or regional conflicts that fall outside the purview of the Council's jurisdiction.

Past Actions

The international community has approached the issue of chokepoint security by using various layers of legal instruments, including a general legal framework, chokepoint-specific treaties, Security Council Resolutions, and ad hoc multinational operations. Since none of the legal regimes is specific only to maritime chokepoints, it is important

⁷⁵ Combined Maritime Forces. (2025). About CMF. <https://combinedmaritimeforces.com/about/>

⁷⁶ U.S. Energy Information Administration. (2023, October 31). Drought at the Panama Canal delays energy shipments, increasing shipping costs. <https://www.eia.gov/todayinenergy/detail.php?id=60842>

for the delegates to examine each layer individually since the resolution will have to accommodate all of them simultaneously.

The General Legal Framework: UNCLOS (1982)

The UN Convention on the Law of the Sea (UNLOS) established in 1982 is the key international treaty dealing with marine choke points.⁷⁷

Part III, Articles 37-44 (Transit Passage). This section defines the rights of transit passage through straits used for international navigation and is a distinct concept and more elaborate than innocent passage. Article 38 grants the right of transit passage to all ships and aircrafts, even military vessels, to navigate through such straits continuously and with reasonable speed, while Article 44 asserts that the right to transit passage shall not be suspended by the adjacent states, as opposed to innocent passage, which may be suspended by coastal states for security reasons within their territorial waters.⁷⁸ This is the law under which the Strait of Hormuz and Bab el-Mandeb are legally open to ships of all flags, and the particular provision that Iran's threats to close the Strait of Hormuz would violate.⁷⁹

Article 19/Article 45 (Innocent Passage). In case transit passage is inapplicable, UNCLOS maintains the earlier and more restrictive right of innocent passage, which is capable of being temporarily suspended for security reasons and not transit passage. Iran has signed but not ratified UNCLOS, and at times it has claimed the right to deny passage on the basis of the innocent-passage regime and not transit passage.⁸⁰

Part V (Articles 55-75, Exclusive Economic Zones). This section explains the exclusive economic zone that is 200 nautical miles where the coastal states have the sovereign rights of resources but not of territory, which is at the core of the law dispute in the South China Sea region, where six parties' EEZ claims overlap.⁸¹

⁷⁷ United Nations. (n.d.). United Nations Convention on the Law of the Sea: Table of contents. Division for Ocean Affairs and the Law of the Sea. https://www.un.org/depts/los/convention_agreements/convention_overview_convention.htm

⁷⁸ United Nations. (n.d.). United Nations Convention on the Law of the Sea: Table of contents. Division for Ocean Affairs and the Law of the Sea. https://www.un.org/depts/los/convention_agreements/convention_overview_convention.htm

⁷⁹ Katzman, K. (2023). Iran's threat to the Strait of Hormuz (CRS Report No. RS20871). Congressional Research Service. <https://crsreports.congress.gov/>

⁸⁰ Kaye, S. (2019). Freedom of navigation in the Indo-Pacific region. Papers in Australian Maritime Affairs, No. 22. <https://www.navy.gov.au/>

⁸¹ United Nations. (n.d.). United Nations Convention on the Law of the Sea: Table of contents. Division for Ocean Affairs and the Law of the Sea. https://www.un.org/depts/los/convention_agreements/convention_overview_convention.htm

Annex VII (Compulsory Arbitration). Compulsory arbitration is available in the UNCLOS between parties as the legal ground by which the Philippines sued China without its agreement in 2013.⁸²

One crucial challenge that delegates will have to face: UNCLOS does not have its own enforcement mechanism. It depends upon the compliance of states, diplomacy, and actions taken by other entities including the Security Council in order to make its provisions work – a flaw evident from all case studies discussed in this committee.

Case Studies

The South China Sea: The 2016 Permanent Court of Arbitration Ruling

The Philippines initiated arbitration proceedings in January 2013, following the procedures outlined in UNCLOS Annex VII despite China's refusal to be a party to or acknowledge such proceedings.⁸³ It was on July 12, 2016, when the arbitration panel made up of five judges, appointed by the Permanent Court of Arbitration in Hague, according to the UNCLOS' compulsory dispute resolution procedures, issued their final ruling. The main points were that:

- China's claim to historic rights within the Nine-Dash Line in the waters of the South China Sea was invalid under UNCLOS, since the ruling indicated that "the Convention defines the limits of maritime entitlements in the South China Sea, which may not exceed the limits specified, thus rendering extinguished any historic rights that China might have had after the Convention's ratification".^{84 85 86}

⁸² Permanent Court of Arbitration. (2016, July 12). The South China Sea Arbitration (The Republic of the Philippines v. The People's Republic of China) (PCA Case No. 2013-19). <https://pca-cpa.org/en/cases/7/>

⁸³ Permanent Court of Arbitration. (2016, July 12). The South China Sea Arbitration (The Republic of the Philippines v. The People's Republic of China) (PCA Case No. 2013-19). <https://pca-cpa.org/en/cases/7/>

⁸⁴ Permanent Court of Arbitration. (2016, July 12). The South China Sea Arbitration (The Republic of the Philippines v. The People's Republic of China) (PCA Case No. 2013-19). <https://pca-cpa.org/en/cases/7/>

⁸⁵ Center for Strategic and International Studies. (n.d.). Arbitration on the South China Sea: A reading guide. Asia Maritime Transparency Initiative. <https://amti.csis.org/>

⁸⁶ Asia Maritime Transparency Initiative. (2016, July 12). Arbitration ruling: What you need to know. Center for Strategic and International Studies. <https://amti.csis.org/arbitration/>

- No part of the contentious area of Spratly Islands, even the largest one named Itu Aba, qualifies for an island status in compliance with UNCLOS provisions that enable creation of 200 nautical miles EEZ and continental shelf.⁸⁷
- China violated the Philippines' sovereignty by intruding on its oil exploration, stopping Philippine fishing in its own EEZ and not stopping the fishing activities of Chinese fishing vessels in its own EEZ.⁸⁸
- China failed in its commitment to protect the marine environment in accordance with UNCLOS by undertaking massive land reclamation that did serious damage to coral reefs.⁸⁹
- The Scarborough Shoal has been proven to be a traditional fishing ground available for fishermen from various nations such as the Philippines, China, and Vietnam.⁹⁰

The ruling is legally binding on both parties according to Articles 296 and 11 of UNCLOS Annex VII, the Chinese government's refusal to take part in the process does not impact the validity of the decision but only its practical implementation.⁹¹ China has dismissed the decision as having no binding effect and has engaged in land reclamations, militarizations of artificial islands, and coast guard activities in territories identified as Philippine waters by the court, with frequent incidents occurring at the Second Thomas Shoal, which has been consistently characterized in the context of the 2016 ruling by the Philippine government.⁹² The ruling exemplifies in the best way the legal-validity vs. practical-enforcement dichotomy presented in this guide.

Bab el-Mandeb and the Red Sea: The Yemen Sanctions and Maritime Security Resolutions

The Security Council has put together an incremental sanctions regime and maritime security regime in relation to the Yemen crisis for more than a decade, as described

⁸⁷ Permanent Court of Arbitration. (2016, July 12). The South China Sea Arbitration (The Republic of the Philippines v. The People's Republic of China) (PCA Case No. 2013-19). <https://pca-cpa.org/en/cases/7/>

⁸⁸ U.S.-China Economic and Security Review Commission. (2016). 2016 annual report to Congress. <https://www.uscc.gov/annual-report/2016-annual-report-congress>

⁸⁹ U.S.-China Economic and Security Review Commission. (2016). 2016 annual report to Congress. <https://www.uscc.gov/annual-report/2016-annual-report-congress>

⁹⁰ Republic of the Philippines, Foreign Service Institute. (n.d.). The West Philippine Sea dispute. Department of Foreign Affairs. <https://www.fsi.gov.ph/>

⁹¹ Permanent Court of Arbitration. (2016, July 12). The South China Sea Arbitration (The Republic of the Philippines v. The People's Republic of China) (PCA Case No. 2013-19). <https://pca-cpa.org/en/cases/7/>

⁹² U.S.-China Economic and Security Review Commission. (2016). 2016 annual report to Congress. <https://www.uscc.gov/annual-report/2016-annual-report-congress>

in the resolutions of the Security Council itself and the records of its Yemen Sanctions Committee:

- **Resolution 2140 (2014)**, created the first Yemen sanctions regime, which was adopted by consensus, involved targeted people whose activities present a threat to the maintenance of peace and security of Yemen under sanctions for one year in the form of freezing their assets and travel ban, and establishment of the 2140 Sanctions Committee and an experts' group.^{93 94}
- **Resolution 2216 (2015)** pushed for compliance with resolution 2201 (2015) by all parties of Yemen, but mainly the Houthis, under Chapter VII with 14 votes in favor and abstaining vote of Russia, as well as making it obligatory to cease any unilateral actions, leave areas occupied during the crisis and hand over the military hardware acquired from Yemeni Armed Forces.⁹⁵ The most significant step was the imposition of embargo on arms trade regarding some individuals and organizations which gave the ground for stopping arms transportation via sea to the Houthis.^{96 97}
- **Resolution 2624 (2022)** was adopted with 11 in favour to 0 against and four abstentions from Brazil, Ireland, Mexico, and Norway which maintained the measures of asset freeze, travel ban, and targeted arms embargo for the first time in resolutions 2140 and 2216; renewed the mandate of the Panel of Experts; and designated the Houthis as one of the entities subject to the targeted arms embargo.^{98 99} The states abstaining from voting had issues regarding the definition of the "terrorist group," as well as humanitarian repercussions due to such designation.¹⁰⁰
- **Resolution 2722 (2024)** came into effect following the increase in attacks by the Houthis on ships passing through the Red Sea. It deplored attacks on civilian and

⁹³ United Nations Security Council. (2014, February 26). Resolution 2140 (2014) (S/RES/2140). [https://undocs.org/S/RES/2140\(2014\)](https://undocs.org/S/RES/2140(2014))

⁹⁴ United Nations Security Council. (n.d.). Security Council Committee established pursuant to resolution 2140 (2014). <https://www.un.org/securitycouncil/sanctions/2140>

⁹⁵ United Nations Security Council. (2015, April 14). Resolution 2216 (2015) (S/RES/2216). [https://undocs.org/S/RES/2216\(2015\)](https://undocs.org/S/RES/2216(2015))

⁹⁶ United Nations Security Council. (2015, April 14). Resolution 2216 (2015) (S/RES/2216). [https://undocs.org/S/RES/2216\(2015\)](https://undocs.org/S/RES/2216(2015))

⁹⁷ United Nations Security Council. (n.d.). United Nations Security Council consolidated list. <https://www.un.org/securitycouncil/content/un-sc-consolidated-list>

⁹⁸ United Nations Security Council. (2022, February 28). Resolution 2624 (2022) (S/RES/2624). [https://undocs.org/S/RES/2624\(2022\)](https://undocs.org/S/RES/2624(2022))

⁹⁹ United Nations Security Council. (2022, February 28). Resolution 2624 (2022) (S/RES/2624). [https://undocs.org/S/RES/2624\(2022\)](https://undocs.org/S/RES/2624(2022))

¹⁰⁰ United Nations. (2022, February 28). Security Council renews Yemen sanctions regime, designating Houthis as subject to arms embargo (SC/14805). <https://press.un.org/en/2022/sc14805.doc.htm>

commercial ships, called for their immediate end, took into account the right of member states, under international law, to protect their ships from such attacks, attacks that could threaten the freedom of navigation, and called on member states to develop maritime security capabilities to ensure the protection of the coastal and port states of the Red Sea and Bab el-Mandeb area.¹⁰¹ This was the closest legal cover for the multinational maritime operations that ensued.

- **Resolution 2675 (2023)** re-implemented the Yemen sanctions regime established in Resolution 2140.¹⁰²

It is important that the delegates understand the legal framework that has been utilized in this case; instead of adopting an integrated resolution for maritime security, the council has adopted an approach involving a series of modifications to a sanctions regime for internal conflicts, a reactive approach, not a proactive approach, which relies on periodic extension and not permanent authorization.

Alongside these resolutions, the multinational naval responses that have been initiated include the formation of the International Maritime Security Construct in 2019 to protect shipping in the region and subsequent naval escort and interception operations carried out in response to the Houthi threat post 2023 in the absence of any Chapter VII mandate for naval escort missions.

The Panama Canal: The Torrijos-Carter Treaties (1977)

The Torrijos-Carter Treaties were signed by President of the U.S. Jimmy Carter and General Omar Torrijos of Panama on September 7, 1977. There are two treaties that were submitted for consideration to the United Nations Treaty Series.

- **The Panama Canal Treaty** is known for the repeal of the Hay-Bunau-Varilla Treaty passed in 1903 concerning the rule of the United States over the Panama Canal and Canal Zone until December 31, 1999.¹⁰³
- **The Treaty Concerning the Permanent Neutrality and Operation of the Panama Canal ("the Neutrality Treaty")** has no termination date. The first article states that the

¹⁰¹ United Nations Security Council. (2024, January 10). Resolution 2722 (2024) (S/RES/2722). [https://undocs.org/S/RES/2722\(2024\)](https://undocs.org/S/RES/2722(2024))

¹⁰² United Nations Security Council. (2023, November 9). Resolution 2675 (2023) (S/RES/2675). [https://undocs.org/S/RES/2675\(2023\)](https://undocs.org/S/RES/2675(2023))

¹⁰³ Panama Canal Treaty, Pan.-U.S., September 7, 1977, United Nations Treaty Series, Vol. 1161, No. 18379 (registered 1980). <https://treaties.un.org/>

canal is declared to be a neutral international transit waterway; the second article states that both countries will ensure that the Canal shall be safe and accessible to peaceful transit by vessels of all nations "on terms of entire equality," without any discrimination in transit conditions and charges.¹⁰⁴ A 1977 Statement of Understanding issued by President Carter and General Torrijos, sent via official diplomatic channels, specifies that both countries can take actions - even through the use of force - to protect neutrality and the peaceable transit, but disclaims any right of the US to intervene in the internal affairs of Panama.¹⁰⁵

The importance of such a structure is immediate, given the continued relevance of the Neutrality Treaty and its ongoing impact on the continued involvement of the United States in maintaining the neutrality of the Canal – thus becoming an essential part of the legal context for assessing U.S. pronouncements regarding the security of the Panama Canal and Chinese business interests in the region.

The Suez Canal: The Convention of Constantinople (1888)

The Convention of Constantinople is the oldest legal document discussed here and it was concluded on October 29, 1888 by the then major powers of Europe and the Ottoman Empire. As per Article I of the Convention, "The Suez Maritime Canal shall always be free and open, in time of war as in time of peace, to every vessel of commerce or of war, without distinction of flag, and the exercise of the right of blockade against vessels sailing therein shall at no time be asserted."¹⁰⁶ The convention has been in force since the nationalization of the canal in 1956.

The fact that Egypt did not revoke the international nature of the Canal after nationalization is demonstrated by its unilateral declaration in 1957, submitted to the UN Secretariat, wherein it stated that it was still its "unaltered policy and firm purpose...to respect the terms and the spirit of the Constantinople Convention of 1888 and the rights and obligations arising therefrom".¹⁰⁷ This convention does not have a Security Council monitoring mechanism and does not require periodic re-negotiation.

¹⁰⁴Treaty Concerning the Permanent Neutrality and Operation of the Panama Canal, Pan.-U.S., September 7, 1977, United Nations Treaty Series, Vol. 1161, No. 18380 (registered 1980). <https://treaties.un.org/>

¹⁰⁵U.S. Department of State, Office of the Historian. (n.d.). Milestones in the history of U.S. foreign relations: The Panama Canal and the Torrijos-Carter Treaties. <https://history.state.gov/milestones/>

¹⁰⁶Suez Canal Authority. (n.d.). Convention of Constantinople 1888. <https://www.suezcanal.gov.eg/>

¹⁰⁷Sabel, R. (2023). The Suez Canal: Past, present, and future. In C. Lutmar & Z. Rubinovitz (Eds.), *The Suez Canal: Past lessons and future challenges* (pp. 21–38). Palgrave Macmillan.

06

Key Stakeholders & Blocs

Bloc Positions and Key Stakeholders

The issue of international security in maritime chokepoints encompasses a rather diverse range of stakeholders whose strategic, economic, and security interests often converge yet conflict occasionally. While all states share a common interest in ensuring the uninterrupted flow of maritime commerce, their approaches differ significantly when analysed through the lens of sovereignty, freedom of navigation, military presence, and regional security. The following section outlines thoroughly the principal stakeholders and their respective positions concerning the five maritime chokepoints discussed in this Background Guide: the South China Sea, the Strait of Hormuz, the Bab el-Mandeb Strait, the Suez Canal and the Panama Canal.

Permanent Members of the Security Council (P5)

Countries Included: USA, UK, France, Russia and China

The five permanent members of the Security Council play a decisive role in shaping international maritime security. Collectively, they possess significant naval capabilities, maintain global strategic interests, and influence the development and enforcement of international maritime law.

The United States, the United Kingdom and France generally advocate for a rules-based international order centred on freedom of navigation and unimpeded commercial shipping. They frequently support multinational naval operations aimed at protecting critical sea lanes.¹⁰⁸ China, while equally dependent on secure maritime trade, places

¹⁰⁸Freund, E. (2017). Freedom of navigation in the South China Sea: A practical guide. Belfer Center for Science and International Affairs <https://www.belfercenter.org/publication/freedom-navigation-south-china-sea-practical-guide>

greater emphasis on sovereignty and territorial integrity, particularly in relation to the South China Sea¹⁰⁹. Russia similarly prioritizes state sovereignty and remains cautious of expanded multinational military operations near strategically sensitive maritime regions¹¹⁰.

Russia's position is further shaped by its broader maritime strategy. Maintaining access to warm-water ports, preserving freedom of movement between the Black Sea and the Mediterranean, and limiting Western naval influence remain central to Russian security policy.¹¹¹ Since the outbreak of the conflict in Ukraine, issues surrounding maritime access, sanctions enforcement, and naval operations in adjacent seas have reinforced Moscow's emphasis on sovereignty, strategic deterrence and opposition to what it perceives as external interference.¹¹²

Given their political influence and military capabilities, the positions adopted by the P5 largely determine the Security Council's ability to respond to maritime crises.

Case Study: The South China Sea Disputes (2016 - Present)

The South China Sea has become one of the world's most significant maritime security flashpoints, carrying approximately 1/3rd of global maritime trade annually¹¹³ while containing rich fisheries and potential hydrocarbon reserves. China claims sovereignty over most of the sea through its "Nine-Dash Line," which overlaps with the Exclusive Economic Zones (EEZs) claimed by several Southeast Asian states¹¹⁴. Since the mid - 2010s, China has undertaken extensive land reclamation and militarization of artificial islands, constructing airstrips, ports, radar installations, and missile systems to strengthen its presence in the region¹¹⁵.

¹⁰⁹Wikipedia contributors. (n.d.). South China Sea Arbitration. In Wikipedia. Retrieved June 25, 2026, from https://en.wikipedia.org/wiki/South_China_Sea_Arbitration

¹¹⁰ Stronski, P. (2021, May). What is Russia doing in the Black Sea? Carnegie Endowment for International Peace. <https://carnegieendowment.org/posts/2021/05/what-is-russia-doing-in-the-black-sea>

¹¹¹ Stronski, P. (2021, May). What is Russia doing in the Black Sea? Carnegie Endowment for International Peace. <https://carnegieendowment.org/posts/2021/05/what-is-russia-doing-in-the-black-sea>

¹¹² Chatham House. (2025, July). Understanding Russia's Black Sea strategy: Russia's global agenda through the Black Sea. <https://www.chathamhouse.org/2025/07/understanding-russias-black-sea-strategy>

¹¹³ ChinaPower Project. (2017). How much trade transits the South China Sea? Center for Strategic and International Studies. <https://chinapower.csis.org/much-trade-transits-south-china-sea/>

¹¹⁴ Wikipedia contributors. (n.d.). South China Sea Arbitration. In Wikipedia. Retrieved June 25, 2026, from https://en.wikipedia.org/wiki/South_China_Sea_Arbitration

¹¹⁵ Newsweek. (2025, September 12). Satellite photos show Chinese military outposts in the South China Sea. <https://www.newsweek.com/satellite-photos-show-chinese-military-outpost-south-china-sea-2128785>

In 2016, the Permanent Court of Arbitration ruled that China's expansive maritime claims had no legal basis under UNCLOS¹¹⁶, a decision China blatantly rejected. In response, the United States has continued conducting Freedom of Navigation Operations (FONOPs) to challenge excessive maritime claims and uphold what it considers the rules-based international order¹¹⁷. The United Kingdom and France have similarly supported freedom of navigation through naval deployments and diplomatic statements, while Russia has generally supported China's emphasis on sovereignty and opposed external military involvement in regional disputes¹¹⁸.

This case vividly illustrates the fundamental divide amongst the P5 regarding the balance between territorial sovereignty, international law and the protection of global maritime commons.

Gulf and Red Sea Stakeholders

Countries Included: The Kingdom of Bahrain, the Federal Republic of Somalia, the Islamic Republic of Iran, the Kingdom of Saudi Arabia, the Arab Republic of Egypt, and the State of Israel

The Gulf and Red Sea region constitutes one of the world's most strategically sensitive maritime corridors, encompassing the Strait of Hormuz, the Bab el-Mandeb Strait and the Suez Canal. States within this region rely heavily on secure maritime routes for energy exports, international trade as well as regional stability.

Iran views the Strait of Hormuz as a vital component of its national security and frequently opposes an extensive foreign military presence in the Gulf¹¹⁹. Conversely, Bahrain and Saudi Arabia support international cooperation aimed at protecting maritime commerce and ensuring uninterrupted energy exports. Egypt, as the primary administrator of the Suez Canal, prioritizes the security and operational continuity of one of the world's busiest waterways, whereas Israel remains particularly concerned with maintaining access through the Red Sea in light of recent attacks on its banks for commercial shipping linked to it¹²⁰. Somalia, although not directly controlling a chokepoint, remains a critical

¹¹⁶ Permanent Court of Arbitration. (2016, July 12). The South China Sea Arbitration (The Republic of the Philippines v. The People's Republic of China), PCA Case No. 2013-19. <https://pca-cpa.org/en/cases/7/>

¹¹⁷ Poling, G. (2025, July 22). The 2016 South China Sea arbitration and the limits of international law. The Diplomat.

¹¹⁸ Asia Maritime Transparency Initiative. (2016, July 11). Judgment day: The South China Sea tribunal issues its ruling. Center for Strategic and International Studies. <https://amti.csis.org/arbitration-ruling-analysis/>

¹¹⁹ Iran International. (2026, July 4). Iran warns against foreign military presence in Strait of Hormuz after UK-France statement. <https://www.iranintl.com/en/202607042713>

¹²⁰ Wikipedia contributors. (n.d.). Houthi attacks on commercial vessels. In Wikipedia. Retrieved June 25, 2026, from https://en.wikipedia.org/wiki/Houthi_attacks_on_commercial_vessels

stakeholder due to the continued threat of piracy and maritime insecurity within the Gulf of Aden and surrounding waters¹²¹.

Despite differing geopolitical interests, these actors share a common interest in preventing prolonged disruptions to international shipping and regional economic stability.

Case Study: Houthi Attacks in the Bab el-Mandeb Strait (2023 - Present)

The Bab el-Mandeb Strait serves as the southern gateway to the Red Sea and the Suez Canal, making it one of the world's most strategically important maritime chokepoints. Since late 2023, the security environment has deteriorated considerably as Yemen's Houthi movement launched repeated missile, drone and unmanned surface vessel attacks against commercial shipping and naval vessels transiting the region. These attacks were framed by the Houthis as support for Palestinians during the Gaza conflict but quickly evolved into a broader challenge to international maritime security¹²².

The disruption prompted many global shipping companies to suspend Red Sea transit and reroute vessels around the Cape of Good Hope, adding thousands of nautical miles to voyages between Europe and Asia¹²³. This significantly increased transportation costs, insurance premiums, fuel consumption and delivery times, affecting global supply chains and international trade¹²⁴. In response, the United States, the United Kingdom, and several partner states launched multinational maritime operations to protect commercial shipping, while regional actors adopted differing positions on military intervention and escalation¹²⁵.

For Gulf and Red Sea stakeholders, this crisis demonstrates the close relationship between regional conflicts and global maritime commerce. While all states share an interest in maintaining secure shipping lanes, they still remain divided over the role of foreign naval forces, regional security arrangements and the rooted, underlying political causes of maritime instability.

¹²¹ United Nations Press. (2014, October 24). Security Council renews action to fight piracy off Somali coast, calling for deployment of vessels, arms, military aircraft (SC/11643). <https://press.un.org/en/2014/sc11643.doc.htm>

¹²² Atlas Institute for International Affairs. (2025, March 27). The Red Sea shipping crisis (2024–2025): Houthi attacks and global trade disruption. <https://atlasinstitute.org/the-red-sea-shipping-crisis-2024-2025-houthi-attacks-and-global-trade-disruption/>

¹²³ S&P Global Commodity Insights. (2023, December 21). FACTBOX: Seaborne trade reroutes away from Red Sea over Houthi attacks. <https://www.spglobal.com/commodityinsights/en/market-insights/latest-news/shipping/122123-factbox-seaborn-e-trade-reroutes-away-from-red-sea-over-houthi-attacks>

¹²⁴ Atlas Institute for International Affairs. (2025, March 27). The Red Sea shipping crisis (2024–2025): Houthi attacks and global trade disruption.

¹²⁵ Atlas Institute for International Affairs. (2025, March 27). The Red Sea shipping crisis (2024–2025): Houthi attacks and global trade disruption.

Indo-Pacific Maritime Stakeholders

Countries Included: China, Pakistan, India and Singapore

The Indo-Pacific region has become increasingly central to global maritime security, particularly due to the strategic significance of the South China Sea. This region facilitates a substantial proportion of global trade while simultaneously serving as an arena of geopolitical competition.

China regards the South China Sea as integral to its sovereignty and national security, whereas India seeks to preserve stability throughout the Indian Ocean and safeguard vital sea lines of communication connecting Asia with global markets. Pakistan similarly depends upon secure maritime trade routes through the Arabian Sea and Indian Ocean. Singapore, situated adjacent to one of the world's busiest shipping corridors, consistently advocates for open and secure navigation and supports multilateral approaches to maritime governance.

Although these states differ in their strategic priorities, they share an interest in preventing disruptions that could undermine regional stability and international commerce.

Case Study: The 2016 Permanent Court of Arbitration Ruling

In July 2016, the Permanent Court of Arbitration in The Hague issued a landmark ruling in the case brought by the Philippines against China under the United Nations Convention on the Law of the Sea (UNCLOS)¹²⁶. The tribunal concluded that China's "Nine-Dash Line" claims lacked legal basis and affirmed that several disputed maritime features were not entitled to extensive maritime zones¹²⁷. Although legally significant, China rejected the ruling, arguing that the tribunal lacked jurisdiction and maintaining its historical claims over much of the South China Sea¹²⁸.

The ruling has since become a defining reference point for maritime governance in the Indo-Pacific. States such as Singapore and India have consistently emphasized the importance of international law, peaceful dispute resolution as well as the freedom of navigation, while Pakistan has generally aligned more closely with China's regional position. Meanwhile, China has continued strengthening its administrative and military

¹²⁶ Permanent Court of Arbitration. (2016, July 12). The South China Sea Arbitration (The Republic of the Philippines v. The People's Republic of China), PCA Case No. 2013-19. <https://pca-cpa.org/en/cases/7/>

¹²⁷ Wikipedia contributors. (n.d.). South China Sea Arbitration. In Wikipedia. Retrieved June 25, 2026, from https://en.wikipedia.org/wiki/South_China_Sea_Arbitration

¹²⁸ Poling, G. (2025, July 22). The 2016 South China Sea arbitration and the limits of international law. The Diplomat. <https://thediplomat.com/2025/07/the-2016-south-china-sea-arbitration-and-the-limits-of-international-law/>

presence across disputed features, reinforcing its sovereignty claims despite international criticism¹²⁹.

This case quietly reflects the competing interpretations of international maritime law and sovereignty that characterize the Indo-Pacific, as well as , puts a spotlight on the challenge of enforcing international legal decisions when major powers reject their legitimacy, making the South China Sea , yet again, one of the defining maritime security issues of the twenty-first century.

Canal States and relevant Global Trade

Countries Included: Arab Republic of Egypt, Republic of Panama

The Suez Canal and the Panama Canal are among the world's most critical artificial waterways, linking major oceans and significantly reducing transit times for international shipping. Henceforth, Egypt and Panama occupy unique positions as primary custodians of maritime infrastructure with such global economic and strategic importance.

Both states prioritize the uninterrupted operation, physical security and long-term resilience of their respective canals while maintaining sovereign authority over canal management. Egypt's concerns are closely tied to regional instability affecting the Red Sea and Suez route, whereas Panama faces growing challenges from climate change, water scarcity, and major-power interest in canal operations¹³⁰.

Recent disruptions, including the grounding of the *Ever Given* in the Suez Canal¹³¹ and drought-related transit restrictions in the Panama Canal¹³², have exposed the vulnerability of global supply chains to both security and environmental risks. As a result, Egypt and Panama generally support international cooperation, infrastructure investment and resilience planning, aimed at keeping commercial shipping secure, efficient and politically neutral

¹²⁹ Poling, G. (2025, July 22). The 2016 South China Sea arbitration and the limits of international law. *The Diplomat*. <https://thediplomat.com/2025/07/the-2016-south-china-sea-arbitration-and-the-limits-of-international-law/>

¹³⁰ Woodwell Climate Research Center. (2024). Drought, climate, and the Panama Canal. <https://www.woodwellclimate.org/drought-panama-canal-7-graphics/>

¹³¹ SAFETY4SEA. (2026, January 22). *Ever Given*: The grounding that changed the world's view of shipping. <https://safety4sea.com/cm-ever-given-the-grounding-that-changed-the-worlds-view-of-shipping/>

¹³² Woodwell Climate Research Center. (2024). Drought, climate, and the Panama Canal. <https://www.woodwellclimate.org/drought-panama-canal-7-graphics/>

Case Study: The Ever Given Grounding in the Suez Canal (2021)

In March 2021, the ultra-large container vessel *Ever Given* became lodged diagonally across the Suez Canal after being caught in strong winds during transit. The blockage lasted six days and prevented hundreds of vessels from passing through one of the world's busiest maritime trade routes¹³³. As approximately 12% of global trade normally transits the canal, the incident quickly disrupted international supply chains, delayed energy shipments, and generated significant financial losses for shipping companies and global markets¹³⁴.

Although the blockage resulted from an operational accident rather than conflict, it demonstrated the vulnerability of critical maritime infrastructure to even short-term disruptions. The incident prompted renewed international discussions regarding infrastructure resilience, emergency response capabilities, and the need to diversify global supply chains. Egypt subsequently invested in expanding sections of the canal and modernizing navigation systems to reduce the likelihood of similar incidents.

For Egypt, the incident reaffirmed the importance of safeguarding the Suez Canal against operational and security disruptions, whereas for Panama, it highlighted the broader vulnerability of global trade to disruptions in critical maritime infrastructure and reinforced the importance of maintaining a resilient, climate-adaptive and politically neutral canal capable of supporting uninterrupted international commerce.

Global Shipping Nations

Countries Included: The Hellenic Republic of Greece, the Kingdom of Denmark, the Republic of Liberia and the Republic of Singapore

Several states, despite lacking direct control over major maritime chokepoints, possess substantial interests in preserving secure international shipping. Greece, Denmark and Liberia collectively represent a significant proportion of the global merchant fleet through ship ownership and vessel registration¹³⁵.

Their economic prosperity is closely tied to the uninterrupted movement of commercial shipping. Consequently, these states consistently support freedom of navigation, secure

¹³³ SAFETY4SEA. (2026, January 22). *Ever Given: The grounding that changed the world's view of shipping*. <https://safety4sea.com/cm-ever-given-the-grounding-that-changed-the-worlds-view-of-shipping/>

¹³⁴ New Zealand Ministry of Foreign Affairs and Trade. (2021, April 18). *The importance of the Suez Canal to global trade*. <https://www.mfat.govt.nz/en/trade/mfat-market-reports/the-importance-of-the-suez-canal-to-global-trade-18-april-2021>

¹³⁵ SAFETY4SEA. (2025, October 2). *UNCTAD: The top registries and ship owning nations of the world*. <https://safety4sea.com/unctad-the-top-registries-and-ship-owning-nations-of-the-world/>

maritime trade routes, effective counter-piracy measures, and international cooperation aimed at reducing risks to commercial vessels.

Case Study: Red Sea Shipping Rerouting (2023 - Present)

The escalation of attacks against commercial vessels in the Red Sea has significantly affected global maritime commerce. As security risks increased, many international shipping companies, including several of the world's largest container carriers, temporarily suspended transit through the Bab el-Mandeb Strait and the Suez Canal, opting instead to re-route vessels around the Cape of Good Hope¹³⁶. While improving vessel safety, this alternative route substantially increased voyage durations, operational costs, fuel consumption and greenhouse gas emissions¹³⁷.

These disruptions had immediate consequences for states whose economies rely heavily on international shipping, merchant fleets and maritime logistics. Greece, Denmark and Liberia, experienced increased insurance costs and operational uncertainty¹³⁸. Even Singapore faced challenges due to disruptions affecting wider Asian trade networks.

Emerging Maritime Stakeholders

Countries Included: Republic of Latvia, Democratic Republic of the Congo and Republic of Türkiye

States such as Colombia, the Democratic Republic of the Congo and Latvia possess comparatively limited direct influence over the maritime chokepoints examined within this Background Guide. Nevertheless, they remain important participants within the Security Council due to the global consequences of maritime disruptions.

These states generally advocate for multilateral cooperation, adherence to international law, capacity building and the peaceful resolution of disputes, whilst their perspectives frequently emphasize strengthening international institutions, enhancing maritime governance and improving resilience against emerging security threats.

¹³⁶SAFETY4SEA. (2026, January 22). Ever Given: The grounding that changed the world's view of shipping. <https://safety4sea.com/cm-ever-given-the-grounding-that-changed-the-worlds-view-of-shipping/>

¹³⁷S&P Global Commodity Insights. (2023, December 21). FACTBOX: Seaborne trade reroutes away from Red Sea over Houthi attacks. <https://www.spglobal.com/commodityinsights/en/market-insights/latest-news/shipping/122123-factbox-seaborn-e-trade-reroutes-away-from-red-sea-over-houthi-attacks>

¹³⁸S&P Global Commodity Insights. (2023, December 21). FACTBOX: Seaborne trade reroutes away from Red Sea over Houthi attacks. <https://www.spglobal.com/commodityinsights/en/market-insights/latest-news/shipping/122123-factbox-seaborn-e-trade-reroutes-away-from-red-sea-over-houthi-attacks>

Case Study: International Counter-Piracy Operations off the Coast of Somalia

During the late 2000s and early 2010s, piracy along the Somali coast became one of the most serious non-state threats to maritime security. Armed groups targeted commercial vessels transiting the Gulf of Aden and the western Indian Ocean, endangering a major trade corridor between Europe, Asia and the Middle East. The international response combined coordinated naval patrols, information - sharing mechanisms, capacity-building efforts and Security Council resolutions authorizing counter - piracy measures¹³⁹.

These efforts significantly reduced successful pirate attacks and demonstrated the value of multilateral cooperation in protecting civilian shipping. Unlike many territorial disputes, counter-piracy operations received broad international support because they addressed a shared security threat while strengthening regional maritime governance¹⁴⁰.

Nevertheless, Türkiye offers a related yet distinct perspective. Through its control of the Bosphorus and Dardanelles under the Montreux Convention of 1936,¹⁴¹ Türkiye has experience balancing coastal state sovereignty with international navigation.¹⁴² Although these straits are not the focus of this agenda, Türkiye supports solutions respecting sovereign rights, promoting regional stability and avoiding unnecessary military escalation.

¹³⁹ S&P Global Commodity Insights. (2023, December 21). FACTBOX: Seaborne trade reroutes away from Red Sea over Houthi attacks. <https://www.spglobal.com/commodityinsights/en/market-insights/latest-news/shipping/122123-factbox-seaborn-e-trade-reroutes-away-from-red-sea-over-houthi-attacks>

¹⁴⁰ ISS Africa. (2024). Is Somali piracy finally under control? Institute for Security Studies. <https://issafrica.org/iss-today/is-somali-piracy-finally-under-control>

¹⁴¹ Wikipedia contributors. (n.d.). Montreux Convention Regarding the Regime of the Straits. In Wikipedia. Retrieved June 26, 2026, from https://en.wikipedia.org/wiki/Montreux_Convention_Regarding_the_Regime_of_the_Straits

¹⁴² Encyclopaedia Britannica. (2023). Montreux Convention. In Encyclopaedia Britannica. <https://www.britannica.com/event/Montreux-Convention>

07

Questions a Resolution Must Answer

- 1 How should the Security Council respond to attacks on commercial shipping and critical maritime infrastructure?
- 2 How can the international community enhance the resilience of critical maritime infrastructure and global supply chains against military, environmental, and operational disruptions while ensuring the continued flow of international trade?
- 3 How should the Security Council coordinate canal states, coastal states and shipping nations in safeguarding strategic maritime chokepoints?
- 4 How can the Security Council use international law, particularly UNCLOS, to prevent maritime disputes from escalating into conflict?
- 5 How can the Security Council strengthen the resilience of global trade and energy routes against conflict, attacks and other security threats?

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